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ELECTRONICALLY
**F I L E D**
*Superior Court of California, County of San Francisco*
**07/10/2025**
**Clerk of the Court**
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

JEREMY BERENS and
PATRICIA SZAFRANSKI-BERENS,

Plaintiffs,

vs.

ADAM BRADY; EMMA BRADY; and
DOES 1 to 30,

Defendants.
_____/

Case No. CGC-24-611337

***EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL**

**Dept.: 206**
**Date: July 11, 2025**
**Time: 11:00 a.m.**

Defendants, Adam Brady and Emma Brady ["the Bradys"], hereby apply, pursuant to the stipulation of the parties, for an order continuing trial of this action, presently set in Department 206 of the above-named court for 9:30 a.m. on September 2, 2025, to 9:30 a.m. on April 6, 2026 or as soon thereafter as the matter may be heard, and resetting all pre-trial deadlines on the basis of, and with reference to, the new trial date.

## I.

## PROCEDURAL HISTORY

This action was filed on January 2, 2024. (San Francisco County Superior Court Register of Actions ["ROA"], Transaction No. 71718892, January 2, 2024.)

Service on the Bradys was completed on or about May 23, 2024. (Declaration of Joseph Wood In Support Of *Ex Parte* Application, Pursuant To Stipulation, For Continuance Of Trial ["Wood Decl."], filed herewith, paragraph 2.) They filed their answer on July 8, 2024. (ROA, Transaction No. 73568571, July 8, 2024.).

All parties have stipulated to the continuance currently being sought. (Stipulation In Support Of *Ex Parte* Application For Continuance of Trial, submitted herewith; Wood Decl., paragraph 3.)

No prior continuances have been sought in this matter. (Wood Decl., paragraph 4.)

## II.

## STATEMENT OF RELEVANT FACTS

On October 24, 2024, the Bradys submitted a claim to the Stillwater Property and Casualty Insurance Company ["Stillwater"] placing that carrier on notice of the present action. (Wood Decl., paragraph 5.)

The Bradys have since that date made repeated requests for a determination as to whether Stillwater would accept coverage, would provide the Bradys with a defense, and/or would indemnify the Bradys for any judgment or settlement they might be required to pay. (Wood Decl., paragraph 6.)

Despite those requests, Stillwater has not yet issued such a determination. (Wood Decl., paragraph 7.)

The absence of any such determination has materially impaired the parties' ability to move this case forward in two important respects. First, without knowing whether insurance would be available to indemnify the Bradys for any judgment or settlement they might be required to pay, the parties have been unable to meaningfully engage in mediation or informal dispute resolution efforts. It makes little sense to have settlement discussions where, as here, there is uncertainty as to whether indemnification will be available. (Wood Decl., paragraph 8.)

Second, and equally important, if Stillwater agrees to provide a defense it will of course appoint its own choice of counsel to represent the Bradys. Should that occur, newly appointed counsel would need to familiarize themselves with the factual record and procedural posture of the case, determine whether additional discovery was necessary, evaluate legal defenses, and come to a conclusion as to an appropriate settlement amount. (Wood Decl., paragraph 9.)

New counsel would also need, should the case *not* settle, sufficient time to prepare for trial – time that is not available given the presently scheduled trial date. (Wood Decl., paragraph 10.)

## III.

## GOOD CAUSE EXISTS FOR THE CONTINUANCE SOUGHT

### A. Applicable Law.

The Presiding Judge, on stipulation of the parties, may continue trial to a date convenient for the Court pursuant to an *ex parte* application. San Francisco County Superior Court, Uniform Local Rules of Court, Rule 6.0B. Parties seeking a stipulated continuance of the trial date must submit: (1) An *ex parte* application establishing good cause for the continuance, including a declaration that there have been no prior continuances or stating the number of prior continuances, the reasons for those, and the party seeking those; (2) a filed stipulation by all parties including an agreement to a specific trial date; and (3) a proposed order. *Id.* In order for a continuance to be granted, good cause must be shown. *Id*.

Rule 6.0B implements and supplements California Rules of Court, Rule 3.1332, which establishes the general framework for treatment of requests for continuances. Under that framework, "The Court may grant a continuance of trial only upon an affirmative showing of

good cause requiring continuance." California Rules of Court, Rule 3.1332(c). Circumstances that may constitute good cause include "(4) [t]he substitution of trial counsel …" and "(7) [a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." *Id.*

Further, "in ruling on a motion or application for continuance, the Court must consider all the facts and circumstances that are relevant to the determination," which may include "(2) [w]hether there was any previous continuance, extension of time, or delay of trial due to any party ... (5) [t]he prejudice that Parties or witnesses will suffer as a result of the continuance … (9) whether all Parties have stipulated to a continuance …" and "(10) [w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance." California Rules of Court Rule 3.1332(d).

An order granting or denying a continuance is reviewed under the abuse of discretion standard. Such decisions will be upheld unless a clear abuse is shown, amounting to a miscarriage of justice. *Bussard v. Dept. of Motor Vehicles*, 164 Cal. App. 4th 858, 864 (2008).

The factors which influence the granting or denying of a continuance in any particular case are so varied that the trial judge must necessarily exercise a broad discretion. *Taylor v. Bell*, 21 Cal. App. 3d 1002, 1007 (1971).

Since it is impossible to foresee or predict all of the vicissitudes that may occur in the course of a contested proceeding, the determination of a request for continuance must be based upon the facts and circumstances of the case as they exist at the time of the determination. *Boussard*, *supra*, at 864 (citing *Arnett v Office of Admin. Hearings* 49 Cal. App. 4th 332, 342-343 (1996)).

Liberality should be exercised in granting continuances when they are not prejudicial to the interest of other parties to the action. *Whalen v. Superior Court In and For Los Angeles County*, 184 Cal. App. 2d 598, 601 (1960) (citing *Capital National Bank v. Smith*, 62 Cal. App. 2d 328, 339); *Cohen v. Herbert*, 186 Cal. App. 2d 488, 494 (1960) (citing *Canal Oil Co. v. National Oil Co.*, 19 Cal. App. 2d 524, 535).

"The trial judge must exercise his discretion with due regard to all interests involved, and the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." *In re Marriage of Hoffmeister,* 161 Cal. App.3d 1163, 1169 (1984) (citing numerous cases and 2 Wilkin, California Procedure (2d ed. 1971) Trial, § 8 pp. 2865-2866).

**B. Good Cause is Present Here.**

As noted above, good cause for continuance may be found where there has been a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. California Rules of Court, Rule 3.1332(c)(7). The parties' ongoing uncertainty regarding insurance coverage – a situation created entirely by the unexpected lack of cooperation and professionalism of Stillwater and not attributable to either of the parties – constitutes such a change. Had the coverage issue been timely determined, the parties either would have been able to settle the case or would have realized that no settlement was possible and thus would have prepared for trial. Neither of those things occurred, and additional time is required if this matter is to be either settled or fairly litigated.

As further noted above, the substitution of trial counsel is also a circumstance supporting a finding of good cause. California Rules of Court, Rule 3.1332(c)(4). If, as may well happen, Stillwater does undertake the Bradys' defense, new counsel will need the additional time here sought to learn the case, complete any additional discovery they may deem necessary, and prepare for trial.

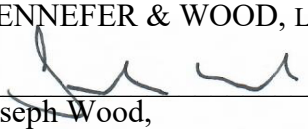
Finally, relevant discretionary factors under California Rules of Court, Rule 3.1332(d) weigh in favor of continuance. There have been no prior continuances sought in this case. A six-month extension is reasonable and limited in scope. A continuance would not prejudice any of the parties. All parties have stipulated to the continuance. Moreover, the requested relief promotes judicial economy and serves the interests of justice by ensuring that the matter proceeds with fully informed parties, that the availability or lack of coverage has been clarified, and that defense counsel are adequately prepared for trial. *See* California Rules of Court, Rules 3.1332(d)(2), (5), (9), (10).

Because the requisite good cause has been shown, the present application should be granted.

Respectfully submitted.

DATED: July 7, 2025

HENNEFER & WOOD, LLP



Joseph Wood,

Attorneys for Defendants, Adam Brady and Emma Brady

## PROOF OF SERVICE

Alexander Vaisman declares:

1. I am over twenty-one years of age and am not a party to the above-named action. My business address is 1 Sansome Street, Suite 3500, San Francisco, CA 94104.

2. On July 7, 2025, in San Francisco, California, I served the attached

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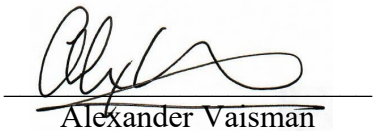
on the parties that have appeared in this action.

3. Service was made by email transmission as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: July 7, 2025



Alexander Vaisman